

November 30, 2021

MassDEP Northeast Regional Office
205B Lowell Street
Wilmington, MA 01887

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Re: Request Superseding Order of Conditions
42 Mill St., Westwood, MA (DEP #338-0706)
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MassDEP Northeast Regional Office:

Goddard Consulting, LLC is pleased to Request a Superseding Order of Conditions (SOC) on behalf of the applicant, Joanne Delapa, Delapa Realty Trust. The applicant seeks a SOC from DEP for a proposed single-family home located at 42 Mill St., Westwood, MA (Map 28, Lot 013). Please note that the Order of Conditions (OOC) was issued on 11/18/21. Today, 11/30/21, is before the 10-day appeal period deadline of 12/3/21, therefore that appeal has been submitted in a timely manner.

The titles of all the documents enclosed are as follows:

- Request for Departmental Action Fee Transmittal Form
- Copy of check
- Final Order of Resource Area Delineation (DEP File #338-0594), 12/19/16
- Final Order of Resource Area Delineation Extension (DEP File #338-0594) 12/24/19
- Westwood Conservation Commission Denial Order of Condition 11/18/2021

Proposed Project:

The applicant has proposed the construction of a single-family residence and appurtenant amenities. The house was to be sited on the only suitable and easily accessible piece of upland on the site. A shared common driveway located on the adjacent parcel will serve as the primary access path to the proposed residence with an individual driveway constructed off of the right-of-way to service the proposed residence.

In order to facilitate access from the right of way, a small wetland crossing will be necessitated for construction of the individual driveway. This crossing is currently associated with a small wetland finger which is part of the "GC-series" wetland. A 12" Reinforced Concrete Pipe (RCP) would be placed at this crossing to maintain a hydrologic connection between the wetlands. This will result in 550sf of wetland fill, which will be replicated immediately adjacent to the crossing at 700sf. This fill is replicated at a ratio of 1:1.27. The project as proposed will result in a net increase of 150sf of wetlands on-site.

Due to the existing deed agreement governing the use of the shared access driveway, underground utilities are not able to be installed within the easement. As a result, the applicant has proposed directional drilling in order to supply water and sewer utilities to the proposed residence. This method avoids impacts to the on-site BVW that would otherwise be required to facilitate installation of the utilities.

Portions of the proposed project occur within Riverfront Area. The Mean Annual High Water line of the perennial stream Mill Brook was confirmed through the issuance of a Final Order of Resource Area Delineation (DEP File #338-0594), which has been extended to December 19, 2022. Please note that the Riverfront Area Impact numbers as referenced in the Denial Order of Conditions are incorrectly listed. The numbers that the Town references are based upon a sketch by the peer reviewer, Brian Donahue of Goldman Environmental, representing how the Riverfront Area in his opinion should be shown, with no regard to the validity of the FORAD. The correct Riverfront Area impact numbers are shown in Table 1 below.

Table 1: A summary of proposed Resource Area alteration in square feet.

Activity	Total RFA	Inner Riparian Zone	Outer Riparian Zone	100' Buffer Zone	0-10ft Buffer Zone
House and House Site (Including Driveway)	±10,702	0	±10,702	±25,301	±560
Repaving Driveway *occurring within existing impervious surface	±4,801	±2,744	±2,057	±6,521	±189
Total Impacts	±15,503	±2,744	±12,759	±31,822	±749
Total Permanent New Development Impacts	±10,702	0	±10,702	±25,301	±560

Timeline of Events

The series of events leading up to the denial are listed in the table below along with the dates of which they occurred.

Date	
December 19, 2016	FORAD issuance by DEP (DEP #338-0594)
December 24, 2019	FORAD extension approved by DEP (DEP #338-0594)
July 8, 2021	First Conservation Commission hearing for the Notice of Intent (DE P#438-0706)
November 10, 2021	Conservation Commission hearing closed, project is denied
November 18, 2021	Issued Denial Order of Conditions (December 3, 2021: deadline for SOC request)
November 30, 2021	Request for SOC

Basis for Denial:

The Westwood Conservation Commission has made the following conclusions regarding the proposed project:

- 1. The Commission has determined that the proposed work cannot be conditioned to meet the performance standards set forth in the wetland regulations, specifically 310 CMR 10.55 and 310 CMR 10.58. Therefore, work on this project may not go forward unless or until a new Notice of Intent is submitted which provides measures which are adequate to protect the interests of the Act, and a final Order of Conditions is issued. The Commission believes the proposed plan is too aggressive and will cause direct impact to the surrounding wetland, buffer zone and wildlife habitat. The Westwood Wetland Bylaw requires, at a minimum, a ten-foot continuous naturally vegetated buffer strip within the Upland Buffer Zone Resource Area with the aim of minimizing adverse impact to the Resource Area.*
- 2. The Commission concludes the proposed wetlands replication area, standing alone, is not a sufficient basis to permit the proposed alteration and occupation of 550 square feet of wetlands and 26,638 sq. ft. of Resource Area, including portions within 10 and also 35 feet, which receive special protection and consideration under the Town's wetlands by-law. The Commission concludes that replication can appropriately serve in mitigation of wetland impacts that are otherwise being authorized for good and sufficient reasons, however there is always a risk that replication will not be successful and there will be a loss of wetland area and function. In this case the Applicant's proposed replication plans appear to be acceptable mitigation for impacts within the wetland and buffer zone, were the Commission to conclude that such wetland alteration would be absolutely necessary in the first place in order to permit a fully described and evaluated activity and to avoid hardship to an applicant that would otherwise be prevented from undertaking such activity. The owner and previous owners have received a very low assessment from the Westwood Assessor's Office due to wetland on this lot. Accordingly, the subject application is denied under both the authority of the Wetlands Protection Act and under the Westwood Wetlands By-Law.*

The Commission claims that the proposed project is not in compliance with 310 CMR 10.55 and 310 CMR 10.58. The proposed project involves 550sf of wetland fill and 700sf of wetland replication, resulting in a net increase of 150sf of wetlands on-site. This amount of wetland replication complies with 310 CMR 10.55(4)(b)(1), which requires the area of replacement to be created to be equal to the area that will be lost.

As previously stated, the Riverfront Area Impact numbers as referenced in the Denial Order of Conditions are incorrectly listed. The numbers that the Town references are based upon a sketch by the peer reviewer, Brian Donahue of Goldman Environmental, representing how the Riverfront Area in his opinion should be shown, with no regard to the validity of the FORAD. The correct amount of on-site Riverfront area is ±115,054sf, with ±10,702sf (9.3%) of permanent impacts to Riverfront Area. Further regulatory compliance on these issues has been outlined within the proposed Notice of Intent.

Conclusion:

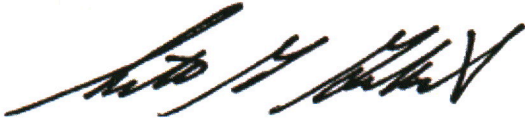
Goddard Consulting, LLC requests the issuance of a SOC that overturns the Westwood Conservation

Commission's Order of Conditions consistent with above, and that approves the proposed project.

If there are any questions concerning this request, please do not hesitate to contact us.

Sincerely,

Goddard Consulting, LLC

A handwritten signature in black ink, appearing to read "Scott G. Goddard", written in a cursive style.

Scott G Goddard, PWS
Professional Wetland Scientist